

Visit report: FPY2.01. Freethorpe_DPE_Visit.23.07.19

Trust/School: Freethorpe Primary **Date:** 23.07.19 **Time:** 13.30

Staff member: DPE: Stuart Lee. School: Lyn Thrower

At the time of the visit the school had an interim headteacher with another (Mark Cresswell) starting in September. The federation is looking at federating the websites and emails, with standard policies across the federation. Due to the current situation it was unclear which GDPR policies and procedures had been completed. Lyn had recently had a remote session with Kalina (DPE) and it was suggested Lyn completes the compliance checklists within the DPE initially. In addition, for Lyn to arrange either a meeting during the summer holidays, or after school meeting in September, with the Chair of Governors (Bruce). This will allow DPE to report at the highest level and support the Federation with ensuring compliance with GDPR.

Summary of main actions is detailed below. Full details contained within the main report:

DPE website and previous reports:

Continue to work through previous reports and the DPE website best practice compliance checklist.

Governance and reporting:

- Check whether there is a governor assigned for GDPR and/or whether GDPR is an item discussed at governor meetings;
- Ensure reports are escalated to governors;
- Lyn to arrange with the chair of governors a meeting with SL to allow supporting the federation with GDPR compliance;
- Lyn to complete the DPE compliance checklists.

Policies and procedures to be completed as soon as possible:

- GDPR policy – add to the federation/school's website
- Privacy statement – add to the federation/school's website
- Data breach procedure
- SAR procedure

ICO requirements:

- School to check they have DPE registered as the named DPO
- ICO Freedom of Information Scheme – does the school have one?

Documents to circulate to staff:

- Data breach procedure
- SAR procedure – for key staff.

Best practice and compliance documents to consider adopting:

- Records management policy – ideally add to the school website;
- Information classification policy;
- Work away from school;
- Consent guidance – details below;
- Clear desk and screen policy;

- Governor hub annual review of school data and safe data destruction checklist.

Documents have either been downloaded or can be obtained from the DPE website.

Technical measures:

- School to check with IT provider current backup encryption/security and cloud backups;
- Consider the IT technician completing cyber the essentials questionnaire;

Website:

Remove outdated data protection policies and update with latest policies/statement;

Check photos against current consent and remove any outdated photos.

Training

- Staff to complete e-learning training;

Retention periods/data audit:

- In addition to the DPE Record of Processing tool it was suggested the school could start to check against: Governor hub annual review of school data and safe data destruction checklist.

Please refer to previous reports and actions below for full details.

Item	Type	Follow on actions/comments
1	Visit report(s)	Continue to work through outstanding actions and audit walk findings from previous visits.
2	DPE website and best practice areas	DPE compliance checklists and updates to the website discussed. Recommended the school complete the compliance checklist initially. The checklists can be used to record and show GDPR progress to governors and support consultants during visits. Best practice areas and documentation discussed.
3	Staff training	The federation has previously completed inhouse GDPR training. Suggested the federation consider: • Rollout e-learning training to key staff and then all staff; • Add as part of induction process for new staff; • Consider the governor responsible for GDPR completing the training; • Use staff meetings/briefings to raise staff awareness.
	Policy/procedure	Follow on actions/comments
1	GDPR data protection policy	Lyn to check if this is completed. Ref: Previous reports and DPE website/ commitment to compliance checklist.
2	GDPR privacy statement	Lyn to check if this is completed. Ref: Previous reports and DPE website/ commitment to compliance checklist.
3	Breach procedure	Lyn to check if this is completed. Ref: Previous reports and DPE website/commitment to compliance checklist.
4	SAR procedure and log	Lyn to check if this is completed. Ref: Previous reports and DPE website/ commitment to compliance checklist.

5	Records management policy	Recommendation from DPE is the policy be adopted by the school. Consider adding to the school website. Ref: DPE website/best practice/resources/
6	Information classification policy	Recommendation from DPE is the policy be adopted by the school. Ref: DPE website/best practice/compliance checklist.
7	Consent forms	Ensure consent aligns with displays in school. Latest DPE consent documents guidance can be obtained from the DPE website. School to check against documentation currently used. Ref: DPE website/best practice/compliance checklist.
8	Clear desk and screen policy	In progress. Ref: DPE website/best practice/resources/policies procedures and forms.
9	FOI Policy	Recommendation from DPE is the policy be adopted by the school. Ref: DPE website/best practice/resources/policies procedures and forms.
10	Retention schedule and safe destruction of data	Governor hub annual review of school data and safe data destruction checklist (attached) and IRMS toolkit documentation discussed with the school. School can continue to check and record against data stored in school. The DPE record of processing tool will also include lawful basis for processing, risk and data retention.
11	DPIA	Discussed with Lyn when one might be needed.
	Data mapping	Follow on actions/comments
1	Data mapping to support the Record of Processing (RoP) tool	As the DPE Record of Processing tool is being launched shortly, the school will wait for this to start data mapping and for record management. DPE will be completing webinars and during July and workshops from September 2019 to support schools with the process.
		IT Provider details: JCCOMMTEC MIS Provider: Pupil Asset
	Technical measures	Follow on actions/comments
1	Website	School to complete checks and cleanse to remove any old photos of leavers from the school website.
2	Servers and back ups	1. School data is backed up and backup taken home. Check if system is backed up to the cloud as well? Does the backup disk still need to be taken home? Can the backup disk be kept onsite in the fire safe if there is cloud backup? School to check with IT provider. 2. Server is kept in a classroom with backup disk near to exit door that was open at time of visit. Check encryption and position of back up. Can the server/backup be placed in a more secure position? 3. School to still to complete a full data cleanse of network. IT provider can complete a search to identify outdated information. School can align with retention schedule and only keep up to date images and photos/videos required for archiving and historical purposes.

3	Cyber essentials	Document attached. Recommend IT provider completes.
	Personal data	Consent obtained
1	Pupil photographs	Latest DPE guidance documents discussed with the school. Ref: DPE website/best practice/compliance checklist.
2	Staff photographs	Latest DPE guidance documents discussed with the school. Ref: DPE website/best practice/compliance checklist.